

**BEFORE THE  
OFFICE OF ADMINISTRATIVE HEARINGS  
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of  
Suspension of:**

**MARK JOSEPH,**

**Moving Party,**

**and**

**BAKERSFIELD CITY SCHOOL DISTRICT,**

**Responding Party.**

**OAH No. 2025021031**

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF  
SUSPENSION**

Thomas Heller, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter by videoconference on March 28, 2025.

Joshua F. Richtel, Esq., Tuttle & McCloskey, represented moving party Mark Joseph (Joseph).

Ellen C. Wu, Esq., Dannis Woliver Kelley, represented responding party Bakersfield City School District (District).

## **BACKGROUND**

On February 1, 2025, the District's Assistant Superintendent of Human Resources signed a Statement of Charges recommending that the Board of Education direct the Superintendent or his designee to notify Joseph of the Board's intention to immediately suspend him without pay and dismiss him from employment. Upon receiving the notice, Joseph demanded a hearing on the Statement of Charges and moved for immediate reversal of the suspension under Education Code section 44939, subdivision (c)(1). The District filed an opposition to the motion, and counsel for Joseph and the District presented oral argument at the motion hearing.

Joseph contends the facts as alleged in the Statement of Charges, even if true, do not support his immediate suspension without pay for immoral conduct as charged. The Statement of Charges alleges Joseph, a permanent certificated employee assigned as a special education teacher at a District middle school, engaged in "inappropriate, unacceptable, and immoral conduct" during the 2021-2022 school year, the extended school year from mid-June to July 1, 2022, and the 2024-2025 school year. (Statement of Charges, ¶ 11.) While not at issue in this motion, the Statement of Charges also alleges Joseph's conduct was unprofessional and evidences his unsatisfactory performance, persistent violation of or refusal to obey the rules governing his employment, and unfitness for service.

During the 2021-2022 school year, Joseph is charged with using his legs to restrain a student sitting on the floor in front of him; pulling another student's arms

around the back of a chair and holding the student's hands; repeatedly telling parents to keep students at home when their one-on-one aide was absent; repeatedly falling asleep during class; and repeatedly walking around his classroom barefoot and rubbing his bare feet. (Statement of Charges, ¶ 3(a)-(f).)

During the extended school year from mid-June to July 1, 2022, Joseph is charged with wrapping his legs around a student to restrain him; ignoring the non-verbal students in his class; telling a student's parents to keep their student at home because the student's aide had to go to court, which was a private matter; directing an aide to instruct a student's parent to keep their student at home because the aide would be absent; telling a coworker she should be wary of one of Joseph's aides because Joseph did not like her; and walking around his classroom barefoot and rubbing his bare feet. (Statement of Charges, ¶ 4(a)-(g).) Joseph is also charged with playing a "dark and violent" two-minute video clip in front of three aides and three students, making at least one aide uncomfortable and upset. (*Id.*, ¶ 4(h).)

During the 2024-2025 school year, Joseph is charged with instructing a low functioning student (F.R.) to take an extremely low functioning student (I.G.) to the restroom because I.G. "has done number two and her diaper was stinking up the room," or words to that effect. Joseph allegedly made the statement in the presence of I.G. and other students. Per Joseph's instructions, F.R. took I.G. to the restroom and removed I.G.'s shoes, pants, and diaper. Without wearing gloves, F.R. used toilet paper to clean the front and back of I.G.'s vagina and rectum area and then put on a new diaper for I.G. The incident allegedly violated District policy requiring an aide to perform such tasks. In addition, Joseph allegedly instructed the other five female students in his class to go to the restroom unsupervised, which also violated District

policy requiring an aide to escort special education students. (Statement of Charges, ¶ 8(a)-(e).)

The District opposes Joseph's motion and contends the allegations are sufficient to support Joseph's immediate suspension without pay for immoral conduct under Education Code section 44939.

## **LEGAL STANDARDS**

The governing board of a school district may immediately suspend a permanent certificated employee who has been charged with "immoral conduct, conviction of a felony or of any crime involving moral turpitude, with incompetency due to mental disability, with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district," or advocating communism. (Ed. Code, § 44939, subd. (b).) A suspended employee may serve and file with the Office of Administrative Hearings a motion for immediate reversal of suspension. (*Id.*, subd. (c)(1).) An administrative law judge reviews the motion, and the review "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (*Ibid.*) Although material facts properly pleaded must be accepted as true, the administrative law judge need not accept contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Immoral conduct is conduct "'hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency,

depravity, dissoluteness; or as wilful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.'" (*Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811, quoting *Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740.)

For purposes of teacher discipline, conduct cannot be characterized as immoral unless it indicates a teacher is unfit to teach. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229 (*Morrison*).) "In determining whether the teacher's conduct thus indicates unfitness to teach the board may consider such matters as the likelihood that the conduct may have adversely affected students or fellow teachers, the degree of such adversity anticipated, the proximity or remoteness in time of the conduct, the type of teaching certificate held by the party involved, the extenuating or aggravating circumstances, if any, surrounding the conduct, the praiseworthiness or blameworthiness of the motives resulting in the conduct, the likelihood of the recurrence of the questioned conduct, and the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers." (*Id.*, footnotes omitted.) Not all of these factors need be examined, only the pertinent ones. (*West Valley – Mission Community College Dist. v. Concepcion* (1993) 16 Cal.App.4th 1766, 1777.)

## **ANALYSIS**

The properly pleaded material facts, if true, constitute a basis for Joseph's immediate suspension for immoral conduct under Education Code section 44939. At a minimum, the facts alleged about the restroom incident during the 2024-2025 school year describe conduct hostile to the welfare of the general public and against public

morals; more specifically in this case, conduct that is hostile to the welfare of the school community. (See *Morrison, supra*, 1 Cal.3d at p. 224.) Furthermore, considering the *Morrison* factors, the allegations about that incident, if true, indicate an unfitness to teach.

Accepting the facts as alleged, Joseph's conduct with respect to the restroom incident was a serious violation of I.G.'s dignity and privacy and District policy. Joseph's conduct also violated F.R.'s rights by directing her to perform toileting care for a classmate. Joseph's alleged statement that I.G. "has done number two and her diaper was stinking up the room," or words to that effect, was demeaning and belittling to I.G., which is an aggravating circumstance. Joseph's conduct is recent, and the likelihood of adverse impact to the students and school community is high. The District justifiably expects better from a special education teacher who serves particularly vulnerable students. These considerations are sufficient to indicate an unfitness to teach regardless of whether recurrence of the questioned conduct is likely. Disciplinary action for Joseph's alleged conduct would also have no discernible adverse or chilling effect on his constitutional rights. (See *Morrison, supra*, 1 Cal.3d at p. 229.)

Joseph points to allegations in the Statement of Charges that he described his handling of the restroom incident as a "bone-headed decision" during the District's subsequent investigation. (Statement of Charges, ¶ 8(f).) According to Joseph, this compels reversal of his immediate suspension because immoral conduct "requires more than just a mistake." (Motion, p. 8.) But Joseph's after-the-fact statement does not indicate his alleged behavior during the incident was "just a mistake." The facts alleged describe intentional conduct and a flagrant disregard for I.G.'s (and F.R.'s) rights.

The Statement of Charges also alleges Joseph physically restrained special education students during the 2021-2022 year and extended school year, among other alleged misconduct. Since the facts alleged about the restroom incident alone justify Joseph's immediate suspension, it is unnecessary to analyze those other allegations on this motion.

## **ORDER**

Mark Joseph's motion for immediate reversal of suspension is denied.

DATE: **04/11/2025**



Thomas Heller (Apr 11, 2025 12:20 PDT)

THOMAS HELLER

Administrative Law Judge

Office of Administrative Hearings